

Warsaw, March 23, 2023

## Decision

DKE.523.34.2021

Based on Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text, Journal of Laws of 2022, item 2000), Article 160 paragraphs 1 and 2 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) in connection with Article 12 point 2 and Article 22 of the Act of August 29, 1997, on the Protection of Personal Data (Journal of Laws of 2016, item 922, as amended), after conducting administrative proceedings regarding the complaint of M. K., residing in W. at Al. (...), concerning the processing of her personal data by Bank P. S.A. with its registered office in W. at ul. (...), the President of the Personal Data Protection Office terminates the proceedings.

## JUSTIFICATION

### Factual Background

A complaint was submitted to the General Inspector for Personal Data Protection (currently: the President of the Personal Data Protection Office, hereinafter referred to as "the President of UODO") by M. K., residing in W. at Al. (...) (hereinafter referred to as "the Complainant"), regarding the unauthorized processing of information (including personal data) by Bank P. S.A. with its registered office in W. at ul. (...) (hereinafter referred to as "the Bank"), in the database of B. S.A. (hereinafter referred to as "B. S.A."), concerning two overdue obligations to the Bank. The Complainant requested that the Bank be ordered to remove her personal data from the B. S.A. database.

The source of the Complainant's obligations to the Bank, referred to in point 1 above, were: the agreement (...) dated May 8, 2000, the agreement (...) dated January 8, 2001, and the annex (...) dated March 22, 2002. Due to the lack of repayment of the loan limit utilized by the Complainant and the creation of a debit balance, the Bank provided B. S.A. with information about the debt, including the personal data of the Complainant. Information about the debt resulting from the aforementioned agreements was made available by B. S.A. to banks and financial institutions authorized to grant loans for the purpose of assessing creditworthiness and analyzing credit risk, as well as to other entities authorized to obtain such information under the Act of August 29, 1997, the Banking Law.

In a letter dated December 9, 2019 (received by the authority on December 16, 2019), B. S.A. stated that it no longer processes the personal data of the Complainant in the scope covered by the complaint.

In this factual situation, the President of UODO considered the following.

### Legal Justification

As of May 25, 2018, the provisions of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) came into force. According to Article 160 paragraphs 1-3 of this Act, proceedings conducted by the General Inspector for Personal Data Protection, initiated and not concluded before the date of entry into force of this Act, are conducted by the President of the Personal Data Protection Office based on the Act of August 29, 1997, on the Protection of Personal Data (Journal of Laws of 2016, item 922, as amended), in accordance with the principles specified in the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text, Journal of Laws of 2022, item 2000), hereinafter referred to as "k.p.a.". At the same time, actions taken in proceedings initiated and not concluded before the entry into force of the provisions of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), remain effective.

The President of the Personal Data Protection Office, when issuing an administrative decision, is obliged to resolve based on the factual state existing at the time of issuing this decision. As indicated in the jurisprudence: "when examining the legality of the processing of personal data, the GIODO is obliged to determine whether, at the date of issuing the decision regarding the specific entity, the data is being processed and whether it is being done in a lawful manner" (judgment of the NSA of May 7, 2008, case no. I OSK 761/07).

According to Article 105 § 1 of the k.p.a., when the proceedings have become irrelevant in whole or in

part for any reason, the public administration authority issues a decision to terminate the proceedings accordingly in whole or in part.

Relating the above provisions to the established factual state, it should be noted that the decisive factor for the resolution in this matter is the circumstance that the information about the Complainant's debt, including her personal data, which is the subject of the complaint, is no longer being processed in B. S.A. The request of the Complainant, formulated in the content of the complaint, has therefore been satisfied during the course of this administrative proceeding. As a result, these proceedings have become irrelevant.

The wording of Article 105 § 1 of the k.p.a. leaves no doubt that in the case of establishing the irrelevance of the proceedings, the authority conducting these proceedings is obliged to terminate them. The Supreme Administrative Court has repeatedly indicated that the irrelevance of administrative proceedings, as stated in Article 105 § 1 of the k.p.a., means that one of the elements of the material legal relationship is missing, and therefore it is not possible to issue a decision resolving the matter by deciding on its substance (Judgment of the NSA of December 1, 2009, II GSK 236/09, LEX no. 582827, Judgment of the NSA of October 16, 2019, II OSK 2526/18, LEX no. 2866336). In this factual and legal situation, the President of the Personal Data Protection Office decided as stated in the operative part.

Based on Article 127 § 3 of the k.p.a., the party has the right to submit a request for reconsideration of the case within 14 days from the date of delivery of the decision to the party. If the party does not wish to exercise the right to submit a request for reconsideration of the case, they have the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of delivery of the decision to the party. The complaint is submitted through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court costs.

Print article

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